

MASTER SERVICE AGREEMENT (MSA)

MSA-2024-001

Date: January 15, 2024

CLIENT

NovaTech Solutions Inc.
742 Innovation Drive, Suite 300
San Jose, CA 95110
EIN: 94-3021567

VENDOR / SERVICE PROVIDER

CloudMinds Pvt. Ltd.
Plot 47, Rajiv Gandhi Infotech Park
Hinjewadi Phase II, Pune – 411057
GSTIN: 27AABCC1234F1Z5

1. PURPOSE & SCOPE

This Master Service Agreement ('Agreement') is entered into as of January 15, 2024 ('Effective Date') between NovaTech Solutions Inc., a California corporation ('Client'), and CloudMinds Pvt. Ltd., an Indian private limited company ('Vendor').

This Agreement establishes the general terms and conditions under which Vendor shall provide technology services to Client. Specific services, deliverables, timelines, and pricing shall be defined in individual Statements of Work (SOWs) executed under this Agreement.

2. TERM

This Agreement shall commence on the Effective Date and continue for an initial term of three (3) years, unless earlier terminated in accordance with Section 10. This Agreement shall automatically renew for successive one-year periods unless either party provides sixty (60) days' prior written notice of non-renewal.

3. SERVICES

Vendor agrees to provide IT consulting, cloud infrastructure management, software development, and related professional services as described in applicable SOWs. Vendor shall perform all services in a professional and workmanlike manner, consistent with industry standards.

All SOWs must reference this Agreement number (MSA-2024-001) to be binding hereunder.

4. PAYMENT TERMS

Client shall pay all undisputed invoices within Net 30 days of receipt. Late payments shall accrue interest at 1.5% per month. All amounts are in USD unless otherwise specified in the applicable SOW. Vendor shall submit invoices referencing the applicable PO number.

5. INTELLECTUAL PROPERTY

All work product, deliverables, and developments created by Vendor specifically for Client under an SOW ('Work Product') shall be considered work-made-for-hire and shall be the exclusive property of Client upon full payment. Vendor retains

ownership of its pre-existing tools, frameworks, and methodologies ('Background IP').

6. CONFIDENTIALITY

Each party agrees to hold the other's Confidential Information in strict confidence using at least the same degree of care as it uses to protect its own confidential information, but no less than reasonable care. This obligation survives termination of this Agreement for five (5) years.

7. DATA PROTECTION

Vendor shall comply with all applicable data protection laws, including the General Data Protection Regulation (GDPR) and the Information Technology Act, 2000 (India). Vendor shall implement appropriate technical and organizational measures to protect Client's data.

8. INDEMNIFICATION & LIABILITY

Each party shall indemnify, defend, and hold harmless the other party from third-party claims arising out of its breach of this Agreement. Notwithstanding the foregoing, neither party's total aggregate liability shall exceed the total fees paid or payable under the applicable SOW in the twelve (12) months preceding the claim.

9. GOVERNING LAW

This Agreement shall be governed by the laws of the State of California, USA, without regard to conflict-of-law principles. Any disputes shall first be subject to good-faith negotiation, then binding arbitration under JAMS rules in San Jose, California.

10. TERMINATION

Either party may terminate this Agreement or any SOW for cause upon thirty (30) days' written notice if the other party materially breaches this Agreement and fails to cure such breach within such period. Client may terminate any SOW for convenience upon sixty (60) days' written notice.

CLIENT SIGNATURE

Name: _____
Title: _____
Date: _____

VENDOR SIGNATURE

Name: _____
Title: _____
Date: _____